

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1255

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO HOSPITALIZATION OF MENTALLY ILL; AMENDING SECTION 66-326, IDAHO CODE, TO REVISE PROVISIONS REGARDING DETENTION WITHOUT HEARING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 66-326, Idaho Code, be, and the same is hereby amended to read as follows:

66-326. DETENTION WITHOUT HEARING. (1) No person shall be taken into custody or detained as an alleged emergency patient for observation, diagnosis, evaluation, care or treatment of mental illness unless and until the court has ordered such apprehension and custody under the provisions outlined in section 66-329, Idaho Code; provided, however, that a person may be taken into custody by a peace officer and placed in a facility, or the person may be detained at a hospital or tribal health facility at which the person presented or was brought to receive medical or mental health care, if the peace officer or a physician medical staff member of such hospital or tribal health facility or a physician's assistant or advanced practice registered nurse practicing in such hospital or tribal health facility has reason to believe that the person is gravely disabled due to mental illness or the person's continued liberty poses an imminent danger to that person or others, as evidenced by a threat of substantial physical harm; provided, under no circumstances shall the proposed patient be detained in a nonmedical unit used for the detention of individuals charged with or convicted of penal offenses. For purposes of this section, the term "peace officer" shall include tribal police officers and state probation and parole officers exercising their authority to supervise probationers and parolees. Whenever a person is taken into custody or detained under this section without court order, the evidence supporting the claim of grave disability due to mental illness or imminent danger must be presented to a duly authorized court within twenty-four (24) hours from the time the individual was placed in custody or detained.

(2) If the court finds the individual to be gravely disabled due to mental illness or imminently dangerous under subsection (1) of this section, the court shall issue a temporary custody order requiring the person to be held in a facility, and requiring an examination of the person by a designated examiner within twenty-four (24) hours of the entry of the order of the court. Under no circumstances shall the proposed patient be detained in a nonmedical unit used for the detention of individuals charged with or convicted of penal offenses.

(3) Where an examination is required under subsection (2) of this section, the designated examiner shall make his findings and report to the court within twenty-four (24) hours of the examination.

1 (4) If the designated examiner finds, in his examination under this
2 section, that the person is mentally ill, and either is likely to injure him-
3 self or others or is gravely disabled due to mental illness, the prosecuting
4 attorney shall file, within twenty-four (24) hours of the examination of the
5 person, a petition with the court requesting the patient's detention pend-
6 ing commitment proceedings pursuant to the provisions of section 66-329,
7 Idaho Code. Upon the receipt of such a petition, the court shall order his
8 detention to await hearing which shall be within five (5) days (including
9 Saturdays, Sundays and legal holidays) of the detention order. If no pe-
10 tition is filed within twenty-four (24) hours of the designated examiner's
11 examination of the person, the person shall be released from the facility.

12 (5) Any person held in custody under the provisions of this section
13 shall have the same protection and rights that are guaranteed to a person
14 already committed to the department director. Upon taking a person into
15 custody, a good faith effort shall be made to provide notice to the person's
16 legal guardian, parent, spouse, or adult next-of-kin of the person's physi-
17 cal whereabouts and the reasons for taking the person into custody.

18 (6) Nothing in this section shall preclude a hospital or tribal health
19 facility from transferring a person who has been detained under this section
20 to another facility that is willing to accept the transferred individual for
21 purposes of observation, diagnosis, evaluation, care or treatment.

22 SECTION 2. An emergency existing therefor, which emergency is hereby
23 declared to exist, this act shall be in full force and effect on and after
24 July 1, 2026.